

24TRCV03994 24TRCV03994

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Case Number: 24TRCV03994 Hearing Date: August 12, 2026 Dept: M

LOS ANGELES SUPERIOR COURT – SOUTHWEST DISTRICT

Honorable Amy N. Carter

Department M

Wednesday – August 12, 2026

Calendar No.

PROCEEDINGS

Mark

Wyatt v. FCA US, LLC, et al.

24TRCV03994

1.

FCA US, LLC's

Motion for Summary Judgment, or, in the Alternative, Summary Adjudication

TENTATIVE RULING

FCA US, LLC's Motion for Summary Judgment is granted.

Background

Plaintiff filed the Complaint on November 25, 2024. Plaintiff

alleges the following facts. Plaintiff alleges that his 2017 Dodge Challenger suffers from engine defects, transmission defects, and electrical defects. Plaintiff sets forth a cause of action under the Song-Beverly Act as well as a sixth cause of action for Fraudulent Inducement-Concealment. Plaintiff also alleged a fifth cause of action for Negligent Repair solely against Los Angeles Chrysler Dodge Jeep Ram.

Motion for Summary Judgment/Adjudication

The purpose of a motion for summary judgment or summary adjudication “is to provide courts with a mechanism to cut through the parties’ pleadings in order to determine whether, despite their allegations, trial is in fact necessary to resolve their dispute.” (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 843.) “Code of Civil Procedure section 437c, subdivision (c), requires the trial judge to grant summary judgment if all the evidence submitted, and ‘all inferences reasonably deducible from the evidence’ and uncontradicted by other inferences or evidence, show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law.” (Adler v. Manor Healthcare Corp. (1992) 7 Cal. App. 4th 1110, 1119.)

“On a motion for summary judgment, the initial burden is always on the moving party to make a prima facie showing that there are no triable issues of material fact.” (Scalf v. D. B. Log Homes, Inc. (2005) 128 Cal. App. 4th 1510, 1519.) A defendant moving for summary judgment or summary adjudication “has met his or her burden of showing that a cause of action has no merit if the party has shown that one or more elements of the cause of action . . . cannot be established, or that there is a complete defense to the cause of action.” CCP § 437c(p)(2). “Once the defendant . . . has met that burden, the burden shifts to the plaintiff . . . to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto.” CCP § 437c(p)(2). “If the plaintiff cannot do so, summary judgment should be granted.” Avivi v. Centro Medico Urgente Medical Center (2008) 159 Cal. App. 4th 463, 467.

“A plaintiff or cross-complainant has met his or her burden of showing that there is no defense to a cause of action if that party has proved each element of the cause of action entitling the party to judgment on the cause of action. Once the plaintiff or cross-complainant has met that

burden, the burden shifts to the defendant or cross-defendant to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto.” Code Civ. Proc., § 437c(p)(1).

“When deciding whether to grant summary judgment, the court must consider all of the evidence set forth in the papers (except evidence to which the court has sustained an objection), as well as all reasonable inferences that may be drawn from that evidence, in the light most favorable to the party opposing summary judgment.” (Avivi, 159 Cal.App.4th at 467; CCP § 437c(c).)

Defendant moves for summary judgment as to Plaintiff’s Complaint. Alternatively, Defendant moves for summary adjudication of the following issues:

“Adjudication No. 1: FCA is entitled to summary adjudication on Plaintiff’s First Cause of Action for Violation of California Civil Code § 1793.2(d);

Adjudication No. 2: FCA is entitled to summary adjudication on Plaintiff’s Second Cause of Action for Violation of California Civil Code § 1793.2(b);

Adjudication No. 3: FCA is entitled to summary adjudication on Plaintiff’s Third Cause of Action for Violation of California Civil Code § 1793.2(a)(3);

Adjudication No. 4: FCA is entitled to summary adjudication on Plaintiff’s Fourth Cause of Action for Breach of the Implied Warranty of Merchantability (California Civil Code §§ 1791.1, 1794 and 1795.5); and

Adjudication No. 5: FCA is entitled to summary adjudication on Plaintiff’s Sixth Cause of Action for Fraudulent Inducement-Concealment.” (Notice of Motion, p. 11-21).

Defendant has met its initial burden to provide specific facts to show that Plaintiff’s causes of action have no merit or that one or more elements of the causes of action cannot be established. (Defendant’s Separate Statement of Facts and Supporting Evidence, 1-44). Plaintiff has not

met his burden to show that a triable issue of material fact exists as to his causes of action. CCP § 437c(p)(2).

As to the first through fourth causes of action for Violations of the Song-Beverly Act ("Act"), Defendant establishes that Plaintiff has no evidence that Plaintiff presented the vehicle for repairs under the vehicle's express warranty which is a requirement under the Act. In *Silvio v. Ford Motor Company* (2003) 109 Cal.App.4th 1205, the Court held that reasonable attempts to repair the vehicle prior to Defendant's obligations to repurchase under the Act are at least two attempts. Here, Defendant presented evidence that the vehicle was never presented for repairs related to the alleged defects that form the basis for the Song-Beverly Act causes of action but presented merely for maintenance. (Defendant's Separate Statement of Facts and Supporting Evidence, 1-40). Therefore, Plaintiff fails to provide evidence to support a violation of the Song-Beverly Act as to his first through fourth causes of action.

Plaintiff also alleged a sixth cause of action outside the scope of the Act for Fraudulent Inducement-Concealment. "A complaint for fraud must allege the following elements: (1) a knowingly false representation by the defendant; (2) an intent to deceive or induce reliance; (3) justifiable reliance by the plaintiff; and (4) resulting damages." *Service by Medallion, Inc. v. Clorox Co.* (1996) 44 Cal.App.4th 1807, 1816. "[T]he elements of an action for fraud and deceit based on a concealment are: (1) the defendant must have concealed or suppressed a material fact, (2) the defendant must have been under a duty to disclose the fact to the plaintiff, (3) the defendant must have intentionally concealed or suppressed the fact with the intent to defraud the plaintiff, (4) the plaintiff must have been unaware of the fact and would not have acted as he did if he has known of the concealed or suppressed fact, and (5) as a result of the concealment or suppression of the fact, the plaintiff must have sustained damage." *Boschma v. Home Loan Center, Inc.* (2011) 198 Cal.App.4th 230, 248.

As to the sixth cause of action for Fraudulent Inducement-Concealment, Defendant presented evidence that Plaintiff had no damages resulting from any fraudulent inducement or concealment. (Defendant's Separate Statement of Facts and Supporting Evidence, 41, 43-44). Plaintiff submitted no evidence to show the existence of a triable issue of material fact as to the element of resulting damages.

Plaintiff failed to meet his burden to provide specific facts to show the existence of a triable issue of material fact as to his causes of action. Plaintiff filed no written opposition to the motion, nor did Plaintiff file a separate statement of facts. The failure to file a separate statement of facts is sufficient grounds, alone, to grant this motion. CCP § 437c(b)(3).

Thus, for the foregoing reasons, Defendant's motion for summary judgment is granted.

Defendant is ordered to give notice of this ruling.